

Amir Khan v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 5 October 2023 · 2023:AHC:191631-DB · Writ-C No. 23894 of 2023 · **Writ disposed; Clause 6.5 application to be decided in six weeks**

HEADNOTE

A Trustee/Mutawalli's writ against a disputed electricity bill was disposed of because Clause 6.5 of the Electricity Supply Code, 2005 is the statutory forum. Any application filed before the second respondent within two weeks is to be examined and redressed in accordance with law within six weeks.

FACTUAL SUMMARY

Amir Khan, a Trustee/Mutawalli, filed Writ-C No. 23894 of 2023 in the Allahabad High Court against the State of Uttar Pradesh and two others, disputing an electricity bill. The Division Bench first took up the petition on 12 September 2023 and adjourned it because advocates were abstaining from judicial work. On 5 October 2023 counsel for respondent no. 2 appeared and objected that the grievance was a disputed electricity bill, for which Clause 6.5 of the Electricity Supply Code, 2005 provided a forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed electricity bill — writ barred by Clause 6.5

HOLDING

A disputed electricity bill is to be taken to the forum under Clause 6.5 of the Electricity Supply Code, 2005, and the writ court will not bypass that statutory remedy. With the parties' consent the petition is disposed of, with a direction that if the petitioner prefers an application before the second respondent within two weeks, it shall be examined and redressed strictly in accordance with law within six weeks thereafter. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill The Court treated the Trustee/Mutawalli's challenge to the electricity bill as a disputed-bill grievance for which Clause 6.5 is the statutory forum, and declined to keep the writ. ¶ 3-4

6.5-representation-as-appropriate-remedy With the parties' consent the petition was disposed of by permitting an application before the second respondent within two weeks, to be examined and redressed in accordance with law within six weeks. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTIFICATION OF THE DISPUTED ELECTRICITY BILL

The Court did not examine the bill. Any application filed within two weeks is left to the second respondent to decide strictly in accordance with law. ¶ 4-5